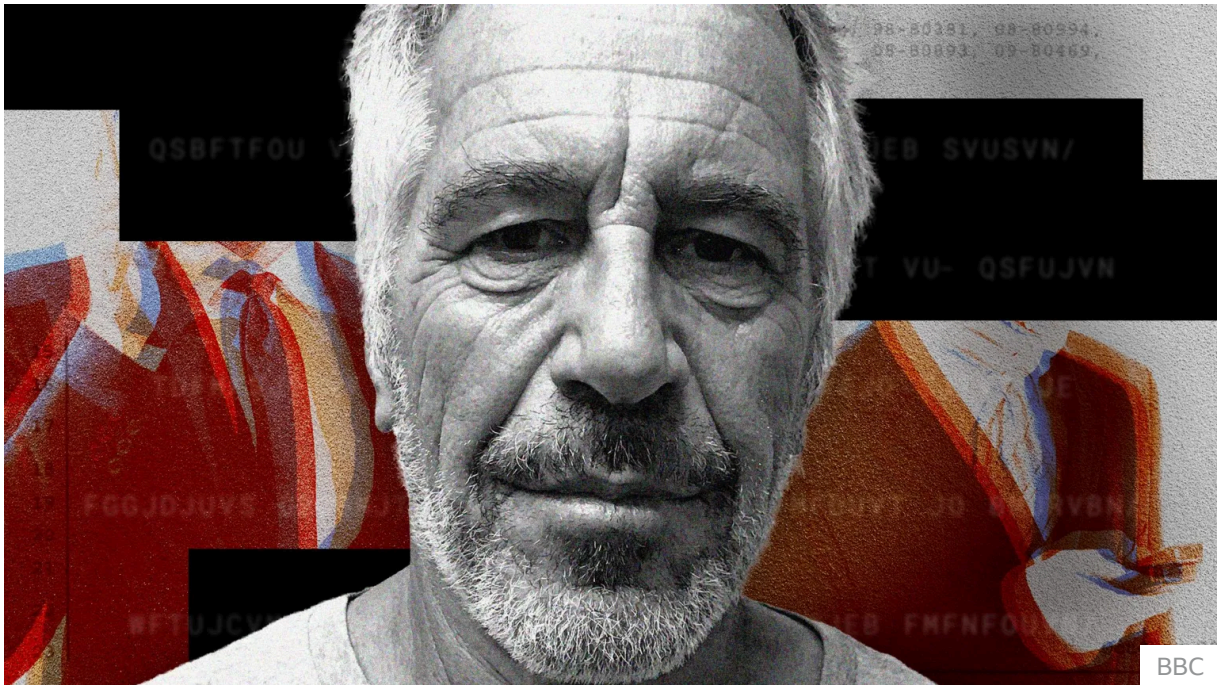


Jeffrey Epstein had two key aides - why do they still control his money and secrets?

14 hours ago

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Chi Chi Izundu, Olivia Davies and Will Dahlgreen, BBC News
Investigations



Jeffrey Epstein appointed two men to be executors of his estate - his accountant Richard Kahn and lawyer Darren Indyke

When the FBI raided Jeffrey Epstein's New York mansion in July 2019, on the day he was arrested for child sex trafficking, agents forced open a large safe to find diamonds, bundles of cash, passports, binders of CDs and hard drives.

But an issue with the warrant meant they could not leave with the items. And when they returned with a

new one, the safe had been emptied while they were gone - according to FBI documents.

Richard Kahn, Epstein's accountant and bookkeeper since 2005, had told the mansion's staff to pack two suitcases with the contents of the safe and deliver them to his home, agents wrote.

After the FBI spoke to Kahn's then lawyer, Kahn agreed to hand over the suitcases untouched, but he did not want agents coming to his house and declined to say who had told him to remove the items.

However, a source close to the investigation into Epstein told us that he was not aware of Kahn ever being interviewed or investigated in relation to the paedophile financier's criminal investigation.

Kahn's current lawyer told BBC News that his client had fully co-operated with the FBI's requests.



Kahn asked staff at Epstein's New York mansion to remove items from a safe, according to the FBI

Kahn, and Epstein's long-serving lawyer Darren Indyke, are the sole executors of Epstein's estate, controlling all his wealth and possessions.

Although hardly household names, the pair now hold control over compensation owed to survivors and the secrets contained in the documents still held by the

Epstein estate - which, upon request, have been released to the House Oversight Committee.

As part of its investigation into Epstein's network, the congressional committee has subpoenaed - summoned - the pair to testify. Kahn is appearing on Wednesday 11 March, while Indyke is due to testify on Thursday 19 March.

We have spoken to people associated with investigations linked to Epstein, looked through papers from multiple court cases, and analysed the most recent material released in the Epstein files by the US Department of Justice - to try to uncover more about the role the two men are alleged to have played in Epstein's life and continue to play after his death.

Epstein appointed Indyke and Kahn as co-executors in August 2019, just two days before he died in jail awaiting trial for sex-trafficking minors. He revised his will to transfer all his wealth into a trust named after the year of his birth, which the lawyer and accountant would administer.

In their role as executors, Indyke and Kahn have agreed compensation packages paid to survivors and included conditions that prevented survivors who accepted funds from taking further legal action against them personally. Other claims are still outstanding.

As beneficiaries of the trust, the men could also be paid tens of millions of dollars each from whatever remains when the claims are settled.

The value of Epstein's estate remains unclear. But it was estimated at roughly \$635m (£475m) at the time of his death, according to Edwards Henderson, a law firm that represents many of the survivors.

One of the women Epstein abused, who asked to remain anonymous, told the BBC that Indyke and Kahn had questions to answer about what they knew about his "enterprise".

"Jeffrey was just one human. There's no way that he would have been able to keep up with all this on his own," she said. "We always say, follow the money, right? If you follow the money, you can understand a lot about how this operation ran."

Court filings claim that, either Indyke and Kahn - but often both of them - "had signatory authority over virtually all of the accounts held by Epstein", which meant they were authorised to make transactions.

They also helped to run multiple Epstein corporations - some of which, it is alleged in court filings, existed solely for the purpose of his sex-trafficking operation. Kahn's lawyer told us "there is no basis for such claims" and that Epstein's businesses didn't operate to shield his activities; "virtually all of them were tax-filing entities whose ownership was never hidden".



Richard Kahn (l) and Darren Indyke (r) have rarely been photographed in public

The pair allegedly received millions in fees and loans from Epstein, paid off survivors and even facilitated coerced marriages for women trafficked from abroad to allow them to stay in the US, according to documents filed in court.

One lawsuit alleges that no-one except Ghislaine Maxwell - a former British socialite and now convicted associate of Epstein - was "as essential and central to Epstein's operation" as Indyke and Khan.

US Congressman Suhas Subramanyam, a member of the House Oversight Committee, told BBC News "they may be two of the best people to talk to" for insight into how Epstein managed his affairs. "Certainly the victims have mentioned them as people who had awareness of some of Jeffrey Epstein's crimes, not just financial dealings, but even the sex trafficking," he said.

Indyke and Kahn have denied any wrongdoing in their interactions with Epstein and are not facing any criminal charges. "No judge in any court anywhere has ever found that Mr Indyke or Mr Kahn committed any wrongdoing of any kind," Daniel Weiner, Indyke's lawyer, told BBC News.

"Not a single woman has ever accused either man of committing sexual abuse or witnessing sexual abuse, nor claimed at any time that she reported to them any allegation of Mr Epstein's abuse," he added.

The woman abused by Epstein told us the men's appearances before the committee were welcome because survivors had been "screaming about them for a long time".

"They need to answer for all of this. I just hope that people actually do speak and don't just plead the Fifth [Amendment] and sit there in silence, because nothing is gained from that," she said.

In addition to their forthcoming testimony, as co-executors of Epstein's estate, Indyke and Kahn have provided the House Oversight Committee with "thousands of pages of documents, photographs and other materials" in response to subpoenas, according to Indyke's lawyer.

But some items, such as Epstein's book of birthday messages, have come with the co-executors' own redactions made beforehand, which Indyke and Kahn's legal team say were made to protect the identities of victims.

The money men

Kahn was not just Epstein's accountant. According to company paperwork, he had a surprising sideline as the manager of a New York-based design company during the 2010s.

However, papers filed at court allege the company was part of a web of firms used by Epstein to funnel money to victims and the people who recruited women to be abused.

These details were uncovered in badly redacted documents from one court case brought by the US Virgin Islands (USVI) against Epstein's estate and the executors, Indyke and Kahn, on grounds of "human trafficking and financial fraud".

The case was settled in 2022, with the estate agreeing to pay more than \$105m (£78m) in cash and half of the proceeds from the sale of one of Epstein's private islands. Court documents from the case alleged the pair helped Epstein manage 140 bank accounts.



US Department of Justice

Proceeds from selling Epstein's private island Little St James went towards settling a US Virgin Islands case where Indyke and Kahn were defendants as co-executors

One of the design company's bank accounts was funded entirely with money transferred from Epstein's personal accounts, the court papers say. The lawsuit claims the

owner of the design firm on paper was a woman who was being sexually abused by Epstein and who was paid through the company.

The other person on the company payroll had been listed by Kahn as a designer in some documents given to the bank, according to the court filings. But the lawsuit claims another document from Kahn revealed that she was in a completely unrelated occupation, suggesting there was no legitimate reason for the company to be paying her a salary.

Kahn's lawyer says there is no basis for claims that his client was involved in unlawful or illegal conduct. "Mr Kahn's work for Epstein was precisely the same kind of accounting and bookkeeping work that thousands of professionals provide to clients on a daily basis," Dan Ruzumna told the BBC.

The court documents allege Indyke and Kahn also used another Epstein company registered in the US Virgin Islands to write cheques worth \$300,000, made out to young women or to an immigration lawyer involved in helping trafficked women stay in the US.

Kahn did not write cheques "for young women and/or an immigration lawyer on Epstein's behalf, as he was not a signatory on any of Epstein's bank accounts until shortly before Epstein's death," said his lawyer Ruzumna.

"Epstein's corporate entities served legitimate business interests, such as employing household staff, paying for expenses associated with a given asset owned by that corporate entity, making charitable contributions, and ensuring that taxes were paid appropriately," he added.

Indyke made repeated cash withdrawals that appeared designed to provide the convicted sex criminal with funds without triggering the bank's reporting requirements, the USVI court documents claim. Women sexually exploited by Epstein say the convicted sex

offender used cash to pay them and the people who recruited new victims.

The court filings claim that, on one occasion, Indyke took two cheques to a New York bank to withdraw cash - \$7,500 from one of Epstein's personal accounts and \$4,000 from Indyke's business account. He cashed one of the cheques and, the papers claim, said he would return the following day to cash the second in order to "avoid all the paperwork".

Over the course of two years, Indyke cashed cheques 45 times using another of Epstein's personal accounts, withdrawing \$7,500 each time - the bank's limit for third-party withdrawals, the court filings claim.

The lawsuit also claims there were 97 separate cash withdrawals of \$1,000 made in less than a year from an ATM a short walk from Indyke's law office - but it does not specify who made the withdrawals.

Indyke and Kahn "profited substantially from their relationship with Epstein" the court documents in the Virgin Islands case also claim. Between 2011 and 2019 Indyke was paid \$16m, and Kahn \$10m, by Epstein and his companies, according to the unredacted papers. This includes loans that Epstein's will said should be "forgiven" - implying the debts should be cancelled.

These sums were "further evidence of the illicit nature of the work they [Indyke and Kahn] performed", the documents claim.

Indyke's lawyer, Daniel Weiner, said: "Mr Indyke and Mr Kahn deny all those contentions, including any allegations of fault, liability, wrongdoing or damages of any kind."

A document in the Epstein files that appears to be the paedophile's will states Indyke and Kahn are also entitled to "annual compensation" for their roles as executors of \$250,000 a year, and their legal fees are covered by the estate.

But Kahn's lawyer Ruzumna told BBC News that the will "provides [for]... each to receive a one-time payment of \$250,000 for administering the estate".

Mr Indyke's lawyer said that the executors "never acted to put their own interests above their duties as co-executors. They continue to administer the Estate... in full accordance with applicable law".

Forced marriages

Epstein encouraged some of the women he trafficked from overseas to find a US citizen to marry, often another woman, to ensure they could remain in the country.

After his 2008 conviction for soliciting prostitution from a minor in Florida, he focused on procuring and abusing women from Eastern Europe, who were "more isolated, dependent and vulnerable", the USVI court case alleges.

"I think it's time you found an american girlfriend", Epstein wrote in an email to an unidentified woman in March 2013. "same sex marriage will be the fastest way to green card. by far."

Later that year, another unidentified woman emailed Epstein to say: "We are going now to get marriage license. And she Is asking if it's possible to meet with you? Because she has some questions."

BBC News has seen a marriage certificate between two women, one of whom later came forward to say she had been abused.

The US Virgin Islands case, which was settled between the parties, alleged Indyke and Kahn "knowingly facilitated" at least three marriages between US victims and foreign victims, who were coerced by Epstein's trafficking operation with threats of "serious reputational and bodily harm" if they refused or tried to leave.

They carried out the legal and accounting work to enable "a fraud that would further bind Epstein's victims to him" and allow him to control and sexually abuse them, the papers filed in court claim. Indyke and Kahn deny the allegations.



One court filing claimed only Ghislaine Maxwell (r) was more central to Epstein's operation than Indyke and Kahn

One US woman who was repeatedly abused by Epstein, and pressured to have sex with his business associates over the course of more than a decade, was forced into a marriage facilitated by Indyke, the court documents say.

The aim was to prevent another Epstein victim being deported from the US, according to the papers - and the US Virgin Islands' attorney general alleged that Indyke and a New York immigration lawyer immediately began helping to prepare the victim for her interview with US immigration officials.

Kahn provided a letter of reference for the immigration proceedings, the court papers say. When the woman asked about ending the marriage and leaving, the court filings say Indyke repeatedly tried to talk her out of divorce and "threatened that she would lose Epstein's and his associates' protection".

Kahn's lawyer Ruzumna told BBC News that his client thought he was providing a favour to her, not participating in a sham, and the woman and her partner

thanked him for providing the letter. Indyke's lawyer Weiner didn't comment specifically about any of the marriage accusations.

Despite Epstein being global headline news for more than a decade for his criminal activities, both Indyke and Kahn's lawyers claim their clients reject as categorically false any suggestion "they knowingly facilitated or assisted Mr Epstein in his sexual abuse or trafficking of women, or that they were aware of Mr Epstein's actions while they provided legal and accounting services respectively to Mr Epstein".

Settling the estate

In 2020, Indyke and Kahn - in their capacity as co-executors - agreed to the Jeffrey Epstein Victim Compensation Program (EVCP), which gave survivors an opportunity to seek financial justice for the abuse they suffered. To ensure the women's claims were "free from any interference by the Epstein estate", according to the EVCP, an independent administrator was introduced.

Claims were more than double the number expected. According to court documents, 136 women received a combined value of \$121m from the Epstein estate. A further 59 claims from other survivors were resolved for a total of \$48m.

Indyke and Kahn have approved the release of funds from the estate "to pay for the legal fees and costs of other co-conspirators", court documents also claim. Both Indyke and Khan deny this and have told the BBC the estate has not paid the legal fees of "any known conspirator in Epstein's crimes".

Additionally, according to a court filing last month, Epstein's estate has agreed to pay up to \$35m to survivors who declined to sign up to the compensation programme, and who sued Indyke and Kahn personally,

alleging the pair facilitated the disgraced financier's sex trafficking and "chose money and power over following the law".

Ahead of the men's scheduled appearances on Capitol Hill, Indyke's lawyer Daniel Weiner said: "Messrs Indyke and Kahn fully intend to continue their cooperation with the [House Oversight] Committee, and look forward to setting the record straight as to their lack of involvement in Epstein's misconduct".

Meanwhile, the anonymous survivor told BBC News: "When you're talking about these huge sums of money, does the money overshadow and outweigh the want, and the need, to do the right thing?

"I don't know. And that's for them morally to find. I hope they do the right thing."

Additional reporting by Paul Myers

If you have information about this story that you would like to share, please email epsteininvestigation@bbc.co.uk

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